

UNITED STATES DISTRICT COURT FOR THE
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION

DEBRA NELSON,
Plaintiffs,

vs.

Case No.: 3:25cv1447/MCR/ZCB

AMENTUM GOVERNMENT
SERVICES PARENT HOLDINGS,
LLC, et al.,
Defendants.

ORDER

On November 13, 2025, Plaintiff filed a “Supplemental Complaint Adding Count XI” (Doc. 22) and a *pro se* “Motion for Leave to File and Receive Documents Electronically” (Doc. 21). For the reasons below, Plaintiff’s “Supplemental Complaint” will be stricken and her motion to file electronically denied.

In her “Supplemental Complaint,” Plaintiff appears to be attempting to add a Title VII retaliation claim based on her allegedly being fired on October 29, 2025. (Doc. 22 at 3-4). Plaintiff states this conduct occurred after the filing of her revised third amended complaint. (*Id.* at 1).

“Federal Rule of Civil Procedure 15(d) provides that a district court ‘may, on just terms, permit a party to serve a supplemental pleading setting out any transaction, occurrence, or event that happened after the date of the pleading to be supplemented.’ *Brennan v. Thomas*, 780 F. App’x 813, 819 (11th Cir. 2019). Whether to grant “leave to file supplemental pleadings is generally within the discretion of the district court.” *Georgia Ass’n of Latino Elected Offs., Inc. v. Gwinnett Cnty. Bd. of Registration & Elections*, 36 F.4th 1100, 1126 (11th Cir. 2022). Importantly, however, any post-pleading allegations and claims “should be added to the complaint via a *motion* to supplement the pleading.” *Lussier v. Dugger*, 904 F.2d 661, 670 (11th Cir. 1990) (emphasis added); *see also* Fed. R. Civ. P. 15(d) (stating that a court may permit a supplemental pleading “[o]n motion and reasonable notice”).

Because Plaintiff failed to file a motion for leave to file her “Supplemental Complaint,” Plaintiff has not complied with the procedural requirements governing such a pleading. Thus, Plaintiff’s “Supplemental Complaint” is due to be stricken. The Court will strike the “Supplemental Complaint” without prejudice to Plaintiff either asserting the claims and allegations therein in either a fourth amended

complaint¹ or a new proposed supplemental complaint filed simultaneously with a motion for leave to file such a proposed supplemental pleading.

The Court next turns to Plaintiff's motion to file electronically. The Local Rules require documents submitted for filing by *pro se* parties to be filed in paper format. *See* N.D. Fla. Loc. R. 5.4(A)(3); *see also* Administrative Order on Electronic Case Filing, at 3 (N.D. Fla. Nov. 28, 2003) ("*Pro se* litigants who are not attorneys must file all documents with the court in paper form").² Because Plaintiff is a *pro se* party, the Local Rules require her to submit all filings in paper form. *Pro se*

¹ Plaintiff has already filed multiple amended complaints in this action (Docs. 5, 7, 18) and more than twenty-one days have elapsed since Plaintiff served process on October 4, 6, and 17, 2025. (Doc. 11; Doc. 14 at 2-3). Responsive pleadings also have not yet been filed by any Defendants. Thus, a fourth amended complaint may only be filed with leave of court or the consent of the opposing parties as set forth in Fed. R. Civ. P. 15(a)(2). *See Toussaint v. U.S. Attorney's Off.*, 2025 WL 2237376, at *5 (11th Cir. Aug. 6, 2025) ("Under Rule 15(a)(1), a party may amend his complaint 'once as a matter of course' within twenty-one days after serving it."); *United States v. Dermatology & Skin Cancer Prevention Ctr., Inc.*, 2013 WL 12109763, at *2 (N.D. Ga. Apr. 11, 2013) ("Rule 15(a), as amended on March 26, 2009, now provides a twenty-one day window following the filing of either a responsive pleading or a Rule 12(b) motion for a matter of course amendment . . .").

²<https://www.flnd.uscourts.gov/sites/flnd/files/general-orders/AdmOrdCMECF.pdf>.

litigants (including prisoners) routinely litigate cases in this Court without filing electronically. Thus, there is no reason to depart from the requirement set forth in the Local Rules in this case and Plaintiff's motion to file electronically will be denied. *See Freiberg v. Francois*, No. 4:05CV177-RH/WCS, 2006 WL 2362046, at *2 (N.D. Fla. Aug. 15, 2006) (denying *pro se* motion to file electronically) ("Attorneys are trained in the procedures of this court, and they are expected to title documents properly and comply with rules of procedure without extensive judicial supervision. A *pro se* litigant does not have such training and frequently makes mistakes, mistakes that must be corrected by the docketing clerks and by the court.").

Accordingly, it is **ORDERED** that:

1. Plaintiff's "Supplemental Complaint Adding Count XI" (Doc. 22) is **STRICKEN**.

2. Within **seven days** of the date of this order, Plaintiff may either (a) move for leave to assert the claims and allegations from the "Supplemental Complaint" in either a fourth amended complaint or (b) move for leave to file a new proposed supplemental complaint. Any proposed pleadings must be simultaneously filed with the respective

motion. Plaintiff must also confer with Defendants before filing any such motion, as required by the Local Rules. N.D. Fla. Loc. R. 7.1(B) (requiring parties to confer before filing a motion raising an issue).

3. The Court will temporarily **TOLL** Defendants' deadline to respond to the third amended complaint (Doc. 18) until Plaintiff's seven-day deadline has passed or until any amendment or supplement issues are resolved by the Court.

4. Plaintiff's "Motion for Leave to File and Receive Documents Electronically" (Doc. 21) is **DENIED**.

SO ORDERED this 13th day of November 2025.

/s/ *Zachary C. Bolitho*
Zachary C. Bolitho
United States Magistrate Judge